

Sobaran Singh v. State of U.P. — time-bound decision of Clause 6.14 instalment application

Allahabad High Court · Single Judge · 19 December 2019 · Writ-C No. 42185 of 2019 · Writ-C No. 42185 of 2019 · **Writ disposed of; respondent no. 3 to consider and decide the 21.10.2019 Clause 6.14 instalment application, preferably within one month, after hearing and in accordance with law; no coercive action till then; merits not adjudicated.**

HEADNOTE

On a limited prayer to which the respondents had no objection, the Allahabad High Court disposed of the writ by directing respondent no. 3 to consider and decide the consumer's pending Clause 6.14 instalment application dated 21.10.2019 after hearing, in accordance with law, preferably within one month of production of a certified copy. Coercive action was stayed until that decision. The Court recorded that it had not adjudicated the claim on merits.

FACTUAL SUMMARY

Sobaran Singh applied on 21 October 2019 under Clause 6.14 of the U.P. Electricity Supply Code, 2005 before respondent no. 3, seeking to pay outstanding electricity dues in instalments. He then invoked the writ jurisdiction of the Allahabad High Court, asking only that the pending application be decided within a fixed time. Counsel for the State and the distribution licensee raised no objection to that limited prayer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity dues

HOLDING

Where a consumer has applied under Clause 6.14 of the U.P. Electricity Supply Code, 2005 for payment of electricity dues in instalments, the High Court may, without examining entitlement on merits, dispose of the writ by directing the competent officer to consider and decide that application after hearing, in accordance with law, within a stipulated period, and may restrain coercive recovery until that decision. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

The Court treated the pending Clause 6.14 application as the forum for the instalment claim and directed the competent officer to decide it; it did not itself grant or refuse instalments. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO PAY ELECTRICITY DUES IN INSTALMENTS UNDER CLAUSE 6.14 ON THE MERITS OF THE 21.10.2019 APPLICATION

The Court expressly recorded that it had not adjudicated the petitioner's claim on merits. ¶ 1